

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV,

– vs. –

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

INFORMAL DOCKET NO.: 1953(I)

KAIRAT NURGAZINOV,

– vs. –

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

**COMPLAINANTS RESPONSE TO RESPONDENTS' PETITION
FOR LEAVE TO SUPPLEMENT EXCEPTIONS**

Complainants, through their Counsel, Marcus A. Nussbaum, Esq. hereby respond to the Petition filed by respondents and their counsel, requesting leave to supplement their Exceptions to the Presiding Officer's September 16, 2016 decision not to consider disciplinary action against complainants' counsel.

RELIEF REQUESTED

Unbelievably, respondents Empire United Lines Co. Inc. (“EUL”) and Michael Hitrinov, by their counsel Eric C. Jeffrey, Esq. (“Jeffrey”) have filed yet another in their innumerable motions now pending before the Presiding Officer and the Commission *solely and exclusively* to

vex, harass, annoy, and intimidate complainants and their counsel; to further needlessly multiply litigation in this matter; and (if possible) to tie the proceedings herein into an even tighter knot than as presently exists in the form of Jeffrey's current frivolous and entirely specious "Petition". Specifically, Jeffrey now seeks to "supplement" Exceptions to the Presiding Officer's Order of September 16, 2016, *issued over four (4) months ago*, wherein the Presiding Officer wisely declined to grant Jeffrey's unprecedented relief sought therein in the form of revoking the ability of complainants' counsel to appear and litigate cases before the Commission.

Significantly, however, and in his breathlessly rabid desire for punitive relief Jeffrey has abjectly failed to state the purpose of supplementing said Exceptions. Notably, *nowhere* does Jeffrey state that the purpose of supplementing said Exceptions is to have the Presiding Officer reconsider, modify, or reverse his decision referred to above. Consequently, the Commission is reasonably left only to conclude that the purpose of supplementing said Exceptions is simply one of emotional venting, to no other apparent purpose. The foregoing is only underscored by the fact that based upon the ongoing "domestic dispute" between Jeffrey and his client, Hitrinov, Jeffrey's firm is not presently being remunerated, and that Jeffrey's continuing efforts in this regard are fueled only by purely visceral and vindictive motivation.

As set forth below complainants vehemently oppose Jeffrey's purposeless Petition, and respectfully ask the Commission to reject same, and to accord said Petition no consideration whatsoever other than that of yet a further example of Jeffrey's unending abuse of the Rules of Practice and Procedure ("RPP") in a continuing attempt to "game" the Commission.

RECENT PROCEDURAL HISTORY

As aforesaid, on September 16, 2016 the Presiding Officer issued an Order, a copy of which is annexed hereto as Appendix "1", denying Jeffrey's motion.

Thereafter, on or about October 11, 2016, Jeffrey filed his purported “Exceptions” to the Presiding Officer’s Order, a copy of which is annexed hereto as Appendix “2” to which complainants served a response thereto on or about October 20, 2016, a copy of which is annexed hereto as Appendix “3” (the Appendix to complainants’ response of October 20, 2016 has been omitted from the instant filing in order to avoid burdening the Commission with voluminous and duplicitous filings).

Since then, proceedings which had already become hopelessly protracted were brought to a grinding halt for the past three (3) months by reason of a dubious issue regarding Jeffrey’s continuing representation of respondents during which time Jeffrey, his clients, and Jeffrey jointly together *with* his clients have made numerous filings, individually and jointly, regarding what can only be described as a “will she”, or “won’t she” kabuki dance as to whether Jeffrey’s firm will or will not be withdrawing as counsel for the respondents herein, the result of which has been a *six (6) month delay in the continuing litigation of this matter* caused by a recent extension of time on said pending motions to March 16, 2017.

It is following all of the foregoing that Jeffrey now interposes his latest frivolous motion in the form of the instant Petition now before the Commission.

ARGUMENT

Jeffrey’s Fraudulent Service and Scurrilous Sharp Practice

Simultaneous with Jeffrey’s pious pontification as “keeper of the Rules”, Jeffrey has engaged in despicable acts of sharp practice regarding service and filings in this matter worthy of the permanent revocation of Jeffrey’s license not only to practice before the Commission, but indeed to practice law in any capacity.

Much like the actions of a teenage girl who has been jilted by her on again/off again boyfriend, Jeffrey has engaged in the infantile practice of blocking complainants' counsel from communicating via email, then unblocking, and then re-blocking of same. It is now evident that the purpose of such infantile actions was to unethically create a situation permitting Jeffrey to "short serve" complainants with legal papers, so as to prevent complainants from interposing responses thereto.

Specifically, and as a prime case in point, Jeffrey's instant "Exceptions" were sent to the office of complainants' counsel via first class mail, bearing a postmark of January 24, 2017; however, said papers were not delivered to complainants' counsel until February 1, 2017. To the extent that common sense dictates that it does not take eight (8) days for first class mail to travel from Washington D.C., to New York City, the Commission can only reasonably conclude that Jeffrey deliberately postmarked said papers on a date certain and then deliberately withheld depositing said papers into the U.S. mail until days afterwards so as to create a situation where complainants were unable to respond within the seven (7) day period prescribed by the RPP, undoubtedly to be followed by a Reply (without leave) that complainants' response papers are "untimely". It is respectfully submitted that such "gutter" tactics should not and cannot be countenanced by the Commission.

At this juncture, and consistent with prior filings and responses engendered by Jeffrey's gross abuse of the RPP and the discovery practice set forth therein along with Jeffrey's general unethical and bad faith litigation practices, complainants would set forth applicable rules and standards of review, citations to controlling case law, presentations of relevant facts and analysis of the rules of law to said facts, followed by conclusions that the Presiding Officer and/or Commission should reasonably arrive at based upon same.

To the extent, however, that Jeffrey's instant Petition constitutes nought but plaintive whining remonstrations of further personal slights to "the great Jeffrey" and the majesty of his megalomaniacal world view of himself, *none* of the foregoing is merited or required based upon the form and content of Jeffrey's Petition to which complainants now respond.

Accordingly, and rather than further burdening the Commission with a point-by-point refutation of Jeffrey's infantile protestations concerning disputes that more properly belong in a playground sandbox as opposed to being shamelessly paraded before the Commission, the Commission is respectfully referred to complainants' response to Jeffrey's "Exceptions" which comprehensively address, and discuss all items and issues resulting in Jeffrey's wounded ego, which fall abysmally short of any serious application to deprive complainants' counsel of the ability to continue to appear before and litigate cases before the Commission.

CONCLUSION

Jeffrey's instant Petition for Leave to Supplement Exceptions to the Presiding Officer's decision of September 16, 2016 was served upon complainants in a fraudulent manner, by scurrilous sharp practice.

Said Petition fails to enunciate *any basis whatsoever* for disturbing the Presiding Officer's decision beyond the frivolous slights to Jeffrey's outsized ego set forth in Jeffrey's initial Exceptions to the Presiding Officer's Order.

In sum, Jeffrey's Petition was interposed for no other reason than immature emotional venting and to further harass, vex, irritate, and annoy complainants and their counsel beyond the reader's comprehension, the measure of which is abundantly evinced by the fact that Jeffrey now plies his bile and venom "for free".

Through such unethical and bad faith methods of practice of which Jeffrey's instant Petition is only the most recent example, litigation of this matter has been brought to a grinding halt.

It is thus hoped and prayed for that the Commission may now do that which the Presiding Officer for reasons unknown has to date declined to do, to wit: take such action that will unlock the impenetrable knot tied by Jeffrey and in some manner allow litigation of complainants' instant claims to move forward.

In closing, complainants sincerely regret having had to burden the Commission with the instant response but continue to confess to be at a total loss as to how to deal with a despicable adversary such as Jeffrey, who is limitless in the depths that he will sink to, the rules of the Commission that he will violate with impunity, the lies that he will tell, and the indescribable disrepute with which he covers himself in his past, present, and continuing filings with the Presiding Officer and the Commission in this matter which do nothing but to diminish the advocacy within which complainants' counsel, but for experiences such as those hoisted upon counsel and the Commission alike by Jeffrey such as the Petition now responded to, are otherwise proud to be a practicing member of.

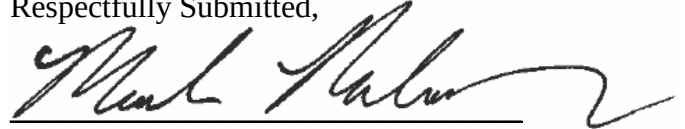
For all these reasons, it is respectfully requested that the Commission *deny* Jeffrey's Petition in its entirety, *with prejudice*, and to the extent that said Petition is presented as a further appeal of the Presiding Officer's Order of September 16, 2016 that said appeal similarly be denied in its entirety, with prejudice.

Complainants otherwise respectfully stand on all other representations made to the Presiding Officer and the Commission in this matter, inclusive of those set forth in complainants

Status Report of January 15, 2017, to which, as of the time of this writing, Jeffrey has failed to interpose a response thereto.

Dated: February 2, 2017
Brooklyn, New York

Respectfully Submitted,

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

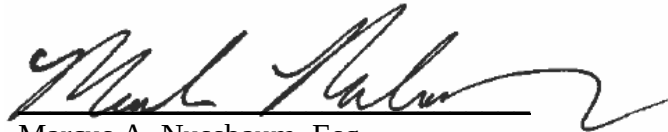
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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS RESPONSE TO RESPONDENTS' PETITION FOR LEAVE TO SUPPLEMENT EXCEPTIONS and APPENDIX** upon Respondents' Counsel at the following address:

Nixon Peabody LLP
Attn: Eric C. Jeffrey, Esq.
799 9th Street NW, Suite 500
Washington, DC 20001-4501

by first class mail, postage prepaid, and by email (ejeffrey@nixonpeabody.com).

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

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Dated: February 2, 2017 in Brooklyn, New York.